

be it civil or criminal, federal, state, or municipal, statutory, regulatory, or court-made.” (*Saunders v. Superior Court* (1994) 27 Cal.App.4th 832, 838-39.) “It is not necessary that the predicate law provide for private civil enforcement.” (*Id.* at 839.) Second, unfair practices are those “whose harm to the victim outweighs its benefits.” (*Ibid.*) Third, fraudulent practices extend beyond those covered by the common law tort and include any practices that are likely to deceive members of the public. (*Buller v. Sutter Health* (2008) 160 Cal.App.4th 981, 986.) The UCL may only be privately enforced “by a person who has suffered injury in fact and has lost money or property as a result of the unfair competition.” (Bus. & Prof. Code § 17204.)

Here, Plaintiffs eighth cause of action identifies Business Code §§ 17500, 17508(a), 17200 and Civil Code section 1770(a)(2) through (5). Rather than allege the essential elements of claims under those sections in the eighth cause of action itself, Plaintiffs allude generally to their entire First Amended Complaint. This is inadequate. Moreover, even if Plaintiffs’ conclusory allegations with respect to economic damages were sufficient, the FAC is bereft of allegations that any specific allegedly unfair and fraudulent conduct by Defendants caused their injury in fact.

The demurrer to the eighth cause of action is **sustained**, with leave to amend.

15. 9:00 AM CASE NUMBER: C25-02933
CASE NAME: OFEILA NOROOZI VS. SANDEEP WALIA, MD
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF 1ST AMENDED COMPLAINT**
FILED BY: JOHN MUIR HEALTH WALNUT CREEK MEDICAL CENTER
TENTATIVE RULING:

Before the Court is Defendant John Muir Health, Defendant John Muir Health Walnut Creek Medical Center, Defendant John Muir Health Organized Medical Staff, and Defendant Contra Costa Pediatric Venture LLC (collectively, “Defendants” or “JMH”)’s motion to strike portions of Plaintiff Ofelia Noroozi, Payman Noroozi, and Sahar Noroozi (collectively, “Plaintiffs”) First Amended Complaint. Plaintiffs oppose the Motion.

For the following reasons, the Motion is **granted-in-part** and **denied-in-part**, with leave to amend.

Legal Standard

California Civil Code (“CC”) § 3294 provides in relevant part:

In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant...

(1) “Malice” means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and

conscious disregard of the rights or safety of others.

(2) "Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

(3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(CC § 3294.)

California Code of Civil Procedure § 436 provides:

The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper:

(a) Strike out any irrelevant, false, or improper matter inserted in any pleading.

(b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

(CCP § 436.)

Motion

Defendant seeks to strike the following from the First Amended Complaint:

- FAC p. 59:14: Prayer for Damages No. 5, "For punitive damages in a sum according to proof and as the Court deems proper (pursuant to Plaintiffs' CCP § 425.13 Motion and Court Order)."
- FAC p. 59:21: Prayer for Damages No. 9, "Statutory penalties, liquidated penalties, and all other penalties and/or damages that may be permitted by law."
- All of the text in paragraphs 43-48, FAC p. 13:7-15:7.
- All of the text of paragraph 64, FAC p. 26:7-22.
- All of the text of paragraph 85, FAC p. 33:13-26.
- All of the text in paragraphs 94-98, FAC p. 36:16-37:22.
- All of the text in paragraphs 99-102, FAC p. 37:22-38:19 and Exhibits 8 through thereto.

Analysis

Irrelevant and Immaterial Allegations

Defendants seek to strike allegations from the FAC regarding another patient's spinal cord injury treated at UCSF-Benioff (FAC ¶¶ 43-48), allegations regarding the pediatric specialists at UCSF-Benioff (FAC ¶ 64), allegations regarding a physician at LSPCH (FAC at ¶ 85), a section reciting case outcomes for various different patients at JMH (FAC at ¶¶ 94-98), and a section regarding JMH's allegedly poor "infection control" (FAC ¶¶ 99-102 and their exhibits).

Defendants argue that these allegations are redundant, immaterial, and irrelevant. Plaintiffs argue that these are "essential allegations" that are not subject to being stricken. The Court does not agree. None of the allegations Defendants seek to strike are essential to any of the elements of Plaintiffs'

alleged causes of action.

Defendants' motion is **granted** with respect to paragraphs 43-48, paragraph 64, paragraph 85, paragraphs 94-98, and paragraphs 99-102 and their exhibits.

Punitive Damages

Defendant argues that 425.13 precludes Plaintiffs' punitive damages claim; Plaintiffs argue that their fraud claim supports their claim for punitive damages.

In *College Hospital*, the California Supreme Court determined that section 425.13 applies when punitive damages are sought for "any misconduct 'directly related to the professional services provided by the healthcare provider.'" (*College Hospital v. Superior Court* (1994) 8 Cal.4th 704, 714, quoting *Central Pathology Service Medical Clinic, Inc. v. Superior Court* (1992) 3 Cal.4th 181, 189.)

However, intentional torts are not subject to this same requirement. (See *Unruh-Haxton v. Regents of University of California* (2008) 162 Cal.App.4th 343, 355-356 [patients' claims for fraud, conversion, and intentional infliction of emotional distress were related to wrongful intentional conduct, not mere negligence; see also *Perry v. Shaw* (2001) 88 Cal.App.4th 658, 669 [nothing in the legislative history of MICRA suggests the Legislature intended to exempt intentional wrongdoers from liability by treating such conduct as though it had been nothing more than mere negligence].)

Under the above case law, Plaintiffs would appear to be able to seek punitive damages for their claims of negligent infliction of emotional distress and fraud.

Even so, there are insufficient factual allegations to support circumstances of fraud, malice or oppression on the part of this Defendant. The mere fact that an intentional tort is alleged is not sufficient. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.) Conclusory allegations of fraud, oppression and malice are not enough. (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.) Where the fraud cause of action is not adequately pleaded, it would not support the claim for punitive damages. Such is the case here.

Furthermore, when seeking punitive damages against a corporation like Defendants, Plaintiffs must allege "advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud or malice ... on the part of an officer, director or managing agent of the corporation." (Civ. Code §3294.) A review of Plaintiff's FAC shows that there are no allegations regarding the conduct of an officer, director, or managing agent of Defendant. Accordingly, this requirement of pleading punitive damages against a corporation has not been satisfied. (See CCP § 3294(b).)

For the foregoing reasons, Defendant's motion is **granted** with respect to the punitive damages allegations.

Attorney's Fees Statutory and Liquidated Penalties

Defendant moves to strike Plaintiffs' prayer for attorney's fees on the grounds that plaintiffs have not

alleged any contractual provision that would entitle them to attorney's fees. Similarly, Defendants move to strike Plaintiffs' prayer for "statutory damages and liquidated penalties."

While Defendant is correct that Plaintiffs have not alleged any contractual provision that would entitle them to attorneys' fees, unsupported attorneys' fee allegations need not be stricken pursuant to a motion to strike, since later discovery may reveal a basis for their recovery. (*Camenisch v. Superior Court* (1996) 44 Cal.App.4th 1689, 1699.) In addition, "[t]here is no requirement that a party plead that it is seeking attorney fees, and there is no requirement that the ground for a fee award be specified in the pleadings." (*Yassin v. Solis* (2010) 184 Cal.App.4th 524, 533.) Attorneys' fees are recoverable as costs if authorized by statute, contract or law. (CCP, § 1033.5, subd. (a)(10).)

As a consequence, Defendant's motion is **denied** with respect to the attorney's fees allegations. However, for similar reasons as the attorney's fees allegations, the Court **denies** the motion as to this portion of Plaintiffs' prayer for relief.

16. 9:00 AM CASE NUMBER: C25-02933
CASE NAME: OFEILA NOROOZI VS. SANDEEP WALIA, MD
HEARING ON DEMURRER TO: FIRST AMENDED COMPLAINT
FILED BY: LUCILE SALTER PACKARD CHILDREN'S HOSPITAL AT STANFORD
TENTATIVE RULING:

Before the Court is Lucile Salter Packard Children's Hospital at Stanford ("Defendant" or "LSPCH")'s Demurrer to Plaintiff Ofelia Noroozi, Payman Noroozi, and Sahar Noroozi (collectively, "Plaintiffs") First Amended Complaint.

Defendant demurs to Plaintiffs' causes of action for (3) wrongful death, (4) Negligent infliction of emotional distress (Ofelia Noroozi), (5) Negligent infliction of emotional distress (Payman Noroozi), (6) Negligent infliction of emotional distress (Sahar Noroozi), (7) fraud, and (8) tort per se on several grounds.

For the following reasons, the Demurrer is **overruled-in-part** and **sustained-in-part** (with leave to amend) as described further below.

Legal Standard

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("*Doe*")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008)